

National Portal Systems, LLC Portal Terms of Use

Last Modified: January 1, 2022

1. Acceptance of the Terms of Use

These terms of use are entered into by and between you and National Portal Systems, LLC (together with its affiliates, parents and subsidiaries, “**NPS**”, “**we**” or “**us**”), a third-party vendor that provides services directly to the owners, operators, and managers (collectively, “**Property Manager**”) of the community where you reside (the “**Property**”). The following terms and conditions (collectively, these “Terms of Use”), govern your access to and use of www.communityresport.com, including any content, functionality and services offered on or through www.communityresport.com (the “**Website**”). One such service (“**Service**”) is the Community Resident Portal (the “**Portal**”) which enables tenants to access and view information about their current leasing agreement; submit maintenance requests; pay rent and other charges to the Property Managers; contact such Property Managers; and any other content, functionality and services offered on or through our Website and Portal. Please note, however, that NPS does not provide services to you, **nor does the Website or Portal actually process payments** - rather, the Website and Portal merely allow you to access, among other things, the payment processing center contracted for service by the Property Manager. All questions related to the services provided via the Portal and Website should be directed to the Property Manager.

Please read the Terms of Use carefully before you start to use the Website or the Portal. By using the Website or Portal or by clicking to accept or agree to the Terms of Use when this option is made available to you, you accept and agree to be bound and abide by these Terms of Use and our Privacy Policy, found at www.communityresport.com, incorporated herein by reference. If you do not want to agree to these Terms of Use or the Privacy Policy, you must not access or use the Website or Portal.

PLEASE NOTE THAT THESE TERMS CONTAIN AN ARBITRATION AGREEMENT AND CLASS ACTION WAIVER THAT REQUIRE YOU TO ARBITRATE ALL DISPUTES YOU HAVE WITH US ON AN INDIVIDUAL BASIS. ACCORDINGLY, YOU AGREE TO GIVE UP YOUR RIGHT TO GO TO COURT (INCLUDING IN A CLASS ACTION PROCEEDING) TO ASSERT OR DEFEND YOUR RIGHTS UNDER THESE TERMS. INSTEAD, YOUR RIGHTS WILL BE DETERMINED BY A NEUTRAL ARBITRATOR, AND NOT A JUDGE OR JURY, AND YOUR CLAIMS CANNOT BE BROUGHT AS A CLASS ACTION. PLEASE REVIEW THE SECTION BELOW ENTITLED “ARBITRATION AND WAIVER OF CLASS ACTION” FOR DETAILS REGARDING YOUR AGREEMENT TO ARBITRATE ANY DISPUTES WITH US.

The Website and Portal are offered and available to users who are 18 years of age or older and who are residents at a community owned by a ManageAmerica Integrated Billings Services LLC client and who have user accounts with the Portal or Website. By using this Website or Portal, you represent and warrant that you are of legal age to form a binding contract with NPS and meet all of the foregoing eligibility requirements. If you do not meet all of these requirements, you must not access or use the Website or the Portal.

2. Changes to the Terms of Use

We may revise and update these Terms of Use from time to time in our sole discretion. All changes are effective immediately when we post them, and apply to all access to and use of the Website and the Portal thereafter.

If we make material changes to these Terms of Use, we will notify you through a notice upon logging in to the Portal or Website. The date these Terms of Use were last revised is identified at the top of the page. You are responsible for periodically visiting our Website or Portal and these Terms of Use to check for any changes.

3. Accessing the Website and Portal and Account Security

We reserve the right to withdraw or amend the Website and the Portal, and any service or material we provide on the Website or Portal, in our sole discretion without notice. We will not be liable if for any reason all or any part of the Website or Portal is unavailable at any time or for any period. From time to time, we may restrict access to some parts of the Website or Portal, or the entire Website or Portal, to users, including registered users.

You are responsible for:

- Making all arrangements necessary for you to have access to the Website or Portal.
- Ensuring that all persons who access the Website or Portal through your internet connection are aware of these Terms of Use and comply with them.

To access the Website or the Portal or some of the resources they offer, you may be asked to provide certain registration details or other information. It is a condition of your use of the Website and Portal that all the information you provide on the Website and Portal is correct, current and complete. You agree that all information you provide to register with the Website and Portal or otherwise, including but not limited to through the use of any interactive features on the Website and Portal, is governed by our Privacy Policy, and you consent to all actions we take with respect to your information consistent with our Privacy Policy.

If you choose, or are provided with, a user name, password or any other piece of information as part of our security procedures, you must treat such information as confidential, and you must not disclose it to any other person or entity. You also acknowledge that your account is personal to you and agree not to provide any other person with access to this Website or Portal or portions of them using your user name, password or other security information. You agree to notify us immediately of any unauthorized access to or use of your user name or password or any other breach of security. You also agree to ensure that you exit from your account at the end of each session. You should use particular caution when accessing your account from a public or shared computer so that others are not able to view or record your password or other personal information.

If you believe someone may attempt to use or has used your username, password and/or account without your permission, or that any other unauthorized use of your username, password and/or account (or a security breach) has occurred, you agree to change your password and notify NPS immediately at security@communityresport.com (providing us with your name, name of community, street address, email address and telephone number). Unauthorized individuals attempting to access these areas of the Website or Portal may be subject to prosecution. NPS and the Property Manager cannot and will not be liable for any damage or loss arising from your failure to comply with this Section.

You should not send any information which you consider to be confidential or proprietary to us via the Website or Portal, except in connection with customer service and to perform those functions permitted by the Portal. Except to the extent required by applicable law, any information or materials that you provide to us will not be considered confidential or proprietary. You warrant that you will not provide any information or materials that are defamatory, threatening, obscene, harassing or otherwise unlawful, or that incorporates the proprietary information of another.

We have the right to disable any user name, password or other identifier, whether chosen by you or provided by us, at any time in our sole discretion for any or no reason, including if, in our opinion, you have violated any provision of these Terms of Use.

4. Registration Obligations

In consideration of your use of the Website or Portal, you agree to: (a) provide information about yourself that is true, accurate, current, and complete (the “**User-Provided Information**”) and (b) where applicable and appropriate, maintain and promptly update the User-Provided Information to keep it true, accurate, current and complete. If you provide information that is untrue, inaccurate, not current or incomplete, or if NPS has reasonable grounds to suspect that such information is untrue, inaccurate, not current or incomplete, NPS reserves the right, in its sole and absolute discretion, to immediately suspend or terminate your Services account and refuse any and all current or future use of the Portal.

5. Intellectual Property Rights

The Website and Portal, including the services and functionality offered through the Website and Portal, and their entire contents, features and functionality (including but not limited to all information, software, text, displays, images, video and audio, and the design, selection and arrangement thereof), are owned by NPS, its licensors or other providers of such material and are protected by United States and international copyright, trademark, patent, trade secret and other intellectual property or proprietary rights laws.

These Terms of Use permit you to use the Website and the Portal for your personal, family, household or non-commercial use only. You must not reproduce, distribute, modify, create derivative works of, publicly display, publicly perform, republish, download, store or transmit any of the material on our Website or Portal, except as follows:

- Your computer may temporarily store copies of such materials in RAM incidental to your accessing and viewing those materials.
- You may store files that are automatically cached by your Web browser for display enhancement purposes.
- You may print one copy of a reasonable number of pages of the Website for your own personal, non-commercial use and not for further reproduction, publication or distribution.

You must not:

- Modify copies of any materials from this site.

- Use any illustrations, photographs, video or audio sequences or any graphics separately from the accompanying text.
- Delete or alter any copyright, trademark or other proprietary rights notices from copies of materials from this site.

You must not access or use for any commercial or governmental purposes any part of the Website or Portal or any services or materials available through the Website or Portal.

If you print, copy, modify, download or otherwise use or provide any other person with access to any part of the Website or Portal in breach of the Terms of Use, your right to use the Website and Portal will cease immediately and you must, at our option, return or destroy any copies of the materials you have made. No right, title or interest in or to the Website or Portal or any content on the Website or Portal is transferred to you, and all rights not expressly granted are reserved by NPS. Any use of the Website and Portal not expressly permitted by these Terms of Use is a breach of these Terms of Use and may violate copyright, trademark and other laws.

6. Trademarks

The NPS name, our logo, and all related names, logos, product and service names, designs and slogans are trademarks of NPS or its licensors. You must not use such marks without the prior written permission of NPS.

7. Prohibited Uses

You may use the Website and Portal only for lawful purposes and in accordance with these Terms of Use. You agree not to use the Website or Portal: (a) in any way that violates any applicable federal, state, local or international law or regulation (including, without limitation, any laws regarding the export of data or software to and from the US or other countries); or (b) to engage in any other conduct that restricts or inhibits anyone's use or enjoyment of the Website or Portal, or which, as determined by us, may harm NPS or users of the Website or Portal or expose them to liability.

Additionally, you agree not to:

- Use the Website or Portal in any manner that could disable, overburden, damage, or impair the site or interfere with any other party's use of the Website or Portal, including their ability to engage in real time activities through the Website or Portal.
- Use any robot, spider or other automatic device, process or means to access the Website or Portal for any purpose, including monitoring or copying any of the material on the Website or Portal.
- Use any manual process to monitor or copy any of the material on the Website or Portal or for any other unauthorized purpose without our prior written consent.
- Use any device, software or routine that interferes with the proper working of the Website or Portal.
- Introduce any viruses, trojan horses, worms, logic bombs or other material which is malicious or technologically harmful.
- Use or attempt to use or access the personal account or personal information of another or create or use a false identity on the Website or Portal.
- Attempt to gain unauthorized access to, interfere with, damage or disrupt any parts of the Website or Portal, the server on which the Website or Portal is stored, or any server, computer or database connected to the Website or Portal.
- Attack the Website or Portal via a denial-of-service attack or a distributed denial-of-service attack.
- Otherwise attempt to interfere with the proper working of the Website or Portal.

8. Monitoring and Enforcement; Termination

We have the right to: (a) take appropriate legal action, including without limitation, referral to law enforcement, for any illegal or unauthorized use of the Website or Portal (including, but not limited to, for commercial purposes or governmental purposes); (b) terminate or suspend your access to all or part of the Website or Portal for any or no reason, including without limitation, any violation of these Terms of Use; and (c) terminate the Website or Portal altogether, provided that this Section 8 and Sections 17, 18, and 20 shall survive such termination.

Without limiting the foregoing, we have the right to fully cooperate with any law enforcement authorities or court order requesting or directing us to disclose the identity or other information of anyone posting any materials on or through the Website or Portal. YOU WAIVE AND HOLD HARMLESS NPS AND ITS LICENSEES AND SERVICE PROVIDERS FROM ANY CLAIMS RESULTING FROM ANY ACTION TAKEN BY ANY OF THE FOREGOING PARTIES DURING OR AS A RESULT OF ITS INVESTIGATIONS AND FROM ANY ACTIONS TAKEN AS A CONSEQUENCE OF INVESTIGATIONS BY EITHER SUCH PARTIES OR LAW ENFORCEMENT AUTHORITIES.

We assume no liability for any action or inaction regarding transmissions, communications or content provided by any user or third party. We have no liability or responsibility to anyone for performance or nonperformance of the activities described in this Section.

9. Contracts between You and a Third Party

The Website and Portal include various product and service offerings that allow you to enter into online transactions with third-parties (including transactions entered into with the Property Manager managing your property) upon terms and conditions determined by such third-parties. While these Terms of Use establish the terms and conditions for your

interaction with the Website and Portal, the specific terms and conditions of the transactions (such as pricing, refunds, etc.) entered into between you and such third-parties are established separately by you and such third-parties. You acknowledge and agree that NPS is not a party or an agent of any transactions conducted via the Website or Portal. NPS does not set, control, or endorse the price, contract terms, quality, safety conformance, or legality of the products or services advertised or offered for sale via the Website or Portal. You further agree and acknowledge that the applicable third-party takes sole responsibility for all products and services provided or made available by such third-parties on or through the Website or Portal. In no event shall NPS be responsible for any liability resulting from or related to such products or services offered through the Website or Portal.

Any fees and payments in connection with your using the Website or Portal are solely between you and Property Manager, and not between you and NPS in any manner. NPS is not charging you a fee for use of the Website or Portal. If you use the Website or Portal to pay your rent or other charges by credit card, you may be transferred to our third party processor and you may incur a convenience fee for using the processor's services.

10. Reliance on Information Posted

The information presented on or through the Website or Portal is made available solely for general information purposes. We do not warrant the accuracy, completeness or usefulness of this information. Any reliance you place on such information is strictly at your own risk. We disclaim all liability and responsibility arising from any reliance placed on such materials by you or any other visitor to the Website or Portal, or by anyone who may be informed of any of its contents.

11. Changes to the Website and Portal

We may update the content on this Website and Portal from time to time, but its content is not necessarily complete or up-to-date. Any of the material on the Website and Portal may be out of date at any given time, and we are under no obligation to update such material.

12. Information About You and Your Visits to the Website and Portal

All information we collect on the Website and Portal is subject to our Privacy Policy. By using the Website or Portal, you consent to all actions taken by us with respect to your information in compliance with the Privacy Policy.

13. Linking to the Website or Portal

You may link to our Website and Portal, provided you do so in a way that is fair and legal and does not damage our reputation or take advantage of it, but you must not establish a link in such a way as to suggest any form of association, approval or endorsement on our part without our express consent.

14. Electronic Communications About Your Account from NPS

By using this Website and providing your phone number and/or email address, you hereby consent to receive electronic communications at the phone number and/or email address you have provided, including push notifications and text messages made by or on behalf of NPS. These communications may include informational messages about your rental property. You confirm that any number you provide is your own. Message and data rates may apply. You understand that you are not required to consent to receiving text messages as a condition of receiving NPS's goods and services or for you to access and use the Website, however, if you decide to not receive text messages from us, you may not receive important and helpful information and reminders about your rental property. You may withdraw your consent to receive electronic documents, notices, or disclosures at any time by contacting us at our contact information listed herein.

15. Authorization for Informational Emails from NPS

In accepting these Terms of Use and using this Website or Portal, you are consenting to receive informational and other emails from NPS, ManageAmerica Billing Services LLC, Origen Financial Services LLC and Safe Haven National Insurance Agency LLC and other current or future affiliates or business partners of NPS.

You have the right to decline to receive informational or commercial emails from us and our affiliates and business partners and can unsubscribe or opt-out at any given time by using the "Unsubscribe" or similar button at the bottom of any such email. Even if you unsubscribe, you will continue to receive transactional and administrative emails from us in connection with your use of the Website or Portal, updates to these Terms of Use, and related information.

16. Geographic Restrictions

The owner of the Website and Portal is based in the state of California in the United States. We provide this Website or Portal for use only by persons located in the United States, Canada, and the United Kingdom, and in the jurisdiction where the Property is located. We make no claims that the Website or Portal or any of its content is accessible or appropriate outside of these jurisdictions. Access to the Website or Portal may not be legal by certain persons or in certain countries. If you access the Website or Portal from outside the United States or the jurisdiction where the Property is located, you do so on your own initiative and are responsible for compliance with local laws.

17. Disclaimer of Warranties

You understand that we cannot and do not guarantee or warrant that files available for downloading from the internet or the Website or Portal will be free of viruses or other destructive code. You are responsible for implementing sufficient procedures and checkpoints to satisfy your particular requirements for anti-virus protection and accuracy of data input and output, and for maintaining a means external to our site for any reconstruction of any lost data. WE WILL NOT BE LIABLE FOR ANY LOSS OR DAMAGE CAUSED BY A DISTRIBUTED DENIAL-OF-SERVICE ATTACK, VIRUSES OR OTHER TECHNOLOGICALLY HARMFUL MATERIAL THAT MAY INFECT YOUR COMPUTER EQUIPMENT, COMPUTER PROGRAMS, DATA OR OTHER PROPRIETARY MATERIAL DUE TO YOUR USE OF THE WEBSITE OR ANY SERVICES OR ITEMS OBTAINED THROUGH THE WEBSITE OR PORTAL OR TO YOUR DOWNLOADING OF ANY MATERIAL POSTED ON IT, OR ON ANY WEBSITE LINKED TO IT.

YOUR USE OF THE WEBSITE OR PORTAL, ITS CONTENT AND ANY SERVICES OR ITEMS OBTAINED THROUGH THE WEBSITE OR PORTAL IS AT YOUR OWN RISK. THE WEBSITE AND PORTAL, THEIR CONTENT AND ANY SERVICES OR ITEMS OBTAINED THROUGH THE WEBSITE AND PORTAL ARE PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS, WITHOUT ANY WARRANTIES OF ANY KIND, EITHER EXPRESS OR IMPLIED. NEITHER NPS NOR ANY PERSON ASSOCIATED WITH NPS MAKES ANY WARRANTY OR REPRESENTATION WITH RESPECT TO THE COMPLETENESS, SECURITY, RELIABILITY, QUALITY, ACCURACY OR AVAILABILITY OF THE WEBSITE AND PORTAL. WITHOUT LIMITING THE FOREGOING, NEITHER NPS NOR ANYONE ASSOCIATED WITH NPS REPRESENTS OR WARRANTS THAT THE WEBSITE OR PORTAL, ITS CONTENT OR ANY SERVICES OR ITEMS OBTAINED THROUGH THE WEBSITE OR PORTAL WILL BE ACCURATE, RELIABLE, ERROR-FREE OR UNINTERRUPTED, THAT DEFECTS WILL BE CORRECTED, THAT OUR SITE OR PORTAL OR THE SERVER THAT MAKES THEM AVAILABLE ARE FREE OF VIRUSES OR OTHER HARMFUL COMPONENTS OR THAT THE WEBSITE OR PORTAL OR ANY SERVICES OBTAINED THROUGH THE WEBSITE OR PORTAL WILL OTHERWISE MEET YOUR NEEDS OR EXPECTATIONS.

NPS HEREBY DISCLAIMS ALL WARRANTIES OF ANY KIND, WHETHER EXPRESS OR IMPLIED, STATUTORY OR OTHERWISE, INCLUDING BUT NOT LIMITED TO ANY WARRANTIES OF MERCHANTABILITY, NON-INFRINGEMENT AND FITNESS FOR PARTICULAR PURPOSE.

THE FOREGOING DOES NOT AFFECT ANY WARRANTIES WHICH CANNOT BE EXCLUDED OR LIMITED UNDER APPLICABLE LAW.

18. Limitation on Liability

IN NO EVENT WILL NPS OR ITS LICENSORS, SERVICE PROVIDERS, EMPLOYEES, AGENTS, OFFICERS OR DIRECTORS BE LIABLE FOR DAMAGES OF ANY KIND, UNDER ANY LEGAL THEORY, ARISING OUT OF OR IN CONNECTION WITH YOUR USE, OR INABILITY TO USE, THE WEBSITE, THE PORTAL ANY WEBSITES LINKED TO THEM, ANY CONTENT ON THE WEBSITE OR SUCH OTHER WEBSITES OR THE PORTAL OR ANY SERVICES OR ITEMS OBTAINED THROUGH THE WEBSITE OR SUCH OTHER WEBSITES OR THE PORTAL, INCLUDING ANY DIRECT, INDIRECT, SPECIAL, INCIDENTAL, CONSEQUENTIAL OR PUNITIVE DAMAGES, INCLUDING BUT NOT LIMITED TO, PERSONAL INJURY, PAIN AND SUFFERING, EMOTIONAL DISTRESS, LOSS OF REVENUE, LOSS OF PROFITS, LOSS OF BUSINESS OR ANTICIPATED SAVINGS, LOSS OF USE, LOSS OF GOODWILL, LOSS OF DATA, AND WHETHER CAUSED BY TORT (INCLUDING NEGLIGENCE), BREACH OF CONTRACT OR OTHERWISE, EVEN IF FORESEEABLE.

THE FOREGOING DOES NOT AFFECT ANY LIABILITY WHICH CANNOT BE EXCLUDED OR LIMITED UNDER APPLICABLE LAW.

19. Indemnification

You agree to defend, indemnify and hold harmless NPS, its licensors and service providers, and its and their respective officers, directors, employees, contractors, agents, licensors, suppliers, successors and assigns from and against any claims, liabilities, damages, judgments, awards, losses, costs, expenses or fees (including reasonable attorneys' fees) arising out of or relating to your violation of these Terms of Use or your use of the Website or Portal, including, but not limited to, any use of the Website or the Portal's content, services and products other than as expressly authorized in these Terms of Use or your use of any information obtained from the Website or Portal.

20. Governing Law and Jurisdiction

All matters relating to the Website or the Portal and these Terms of Use and any dispute or claim arising therefrom or related thereto (in each case, including non-contractual disputes or claims), shall be governed by and construed in accordance with the internal laws of the State of California without giving effect to any choice or conflict of law provision or rule (whether of the State of California or any other jurisdiction).

Any legal suit, action or proceeding arising out of, or related to, these Terms of Use or the Website or Portal shall be instituted exclusively in the federal courts of the United States or the courts of the State of California in each case located in the City of Los Angeles and County of Los Angeles County although we retain the right to bring any suit, action or proceeding against you for breach of these Terms of Use in your country of residence or any other relevant country. You waive any and all objections to the exercise of jurisdiction over you by such courts and to venue in such courts.

21. Arbitration and Waiver of Class Action

YOU AND NPS ARE AGREEING TO GIVE UP ANY RIGHTS TO LITIGATE CLAIMS IN A COURT OR BEFORE A JURY, OR TO PARTICIPATE IN A CLASS ACTION OR REPRESENTATIVE ACTION WITH RESPECT TO A CLAIM. OTHER RIGHTS THAT YOU WOULD HAVE IF YOU WENT TO COURT MAY ALSO BE UNAVAILABLE OR MAY BE LIMITED IN ARBITRATION.

ANY CLAIM, DISPUTE OR CONTROVERSY (WHETHER IN CONTRACT, TORT OR OTHERWISE, WHETHER PRE-EXISTING, PRESENT OR FUTURE, AND INCLUDING STATUTORY, CONSUMER PROTECTION, COMMON LAW, INTENTIONAL TORT, INJUNCTIVE AND EQUITABLE CLAIMS) BETWEEN YOU AND US ARISING FROM OR RELATING IN ANY WAY TO YOUR PURCHASE OF PRODUCTS OR SERVICES THROUGH THE SITE, WILL BE RESOLVED EXCLUSIVELY AND FINALLY BY BINDING ARBITRATION.

The arbitration will be administered by the Judicial Arbitration and Mediation Services, Inc., (JAMS) under the JAMS Comprehensive Arbitration Rules and Procedures. The Comprehensive Arbitration Rules and Procedures are available online at jamsadr.com/rules-comprehensive-arbitration/ then in effect, except as modified by this Section 20. The Federal Arbitration Act will govern the interpretation and enforcement of this Section.

The arbitrator will have exclusive authority to resolve any dispute relating to arbitrability and/or enforceability of this arbitration provision, including any unconscionability challenge or any other challenge that the arbitration provision or the agreement is void, voidable or otherwise invalid. The arbitrator will be empowered to grant whatever relief would be available in court under law or in equity. Any award of the arbitrator(s) will be final and binding on each of the parties, and may be entered as a judgment in any court of competent jurisdiction.

You agree to an arbitration on an individual basis. **IN ANY DISPUTE, NEITHER YOU NOR NPS WILL BE ENTITLED TO JOIN OR CONSOLIDATE CLAIMS BY OR AGAINST EITHER OF THE PARTIES OR OTHER THIRD PARTIES IN COURT OR IN ARBITRATION OR OTHERWISE PARTICIPATE IN ANY CLAIM AS A CLASS REPRESENTATIVE, CLASS MEMBER OR IN A PRIVATE ATTORNEY GENERAL CAPACITY.** The arbitral tribunal may not consolidate more than one person's claims and may not otherwise preside over any form of a representative or class proceeding. The arbitral tribunal has no power to consider the enforceability of this class arbitration waiver and any challenge to the class arbitration waiver may only be raised in a court of competent jurisdiction.

This arbitration clause shall survive the termination of these Terms of Use. If any portion of this arbitration provision is held to be illegal or otherwise unenforceable, the remainder of this arbitration provision will still apply.

22. Limitation on Time to File Claims

ANY CAUSE OF ACTION OR CLAIM YOU MAY HAVE ARISING OUT OF OR RELATING TO THESE TERMS OF USE OR THE WEBSITE OR PORTAL MUST BE COMMENCED WITHIN ONE (1) YEAR AFTER THE CAUSE OF ACTION ACCRUES, OTHERWISE, SUCH CAUSE OF ACTION OR CLAIM IS PERMANENTLY BARRED.

23. Waiver and Severability

No waiver by NPS of any term or condition set forth in these Terms of Use shall be deemed a further or continuing waiver of such term or condition or a waiver of any other term or condition, and any failure of NPS to assert a right or provision under these Terms of Use shall not constitute a waiver of such right or provision.

If any provision of these Terms of Use is held by a court or other tribunal of competent jurisdiction to be invalid, illegal or unenforceable for any reason, such provision shall be eliminated or limited to the minimum extent such that the remaining provisions of the Terms of Use will continue in full force and effect.

24. Entire Agreement

The Terms of Use and our Privacy Policy constitute the sole and entire agreement between you and NPS with respect to the Website and Portal and supersede all prior and contemporaneous understandings, agreements, representations and warranties, both written and oral, with respect to the Website and Portal.

25. Your Comments and Concerns

The Website and Portal are operated by NPS which is located at 8605 Santa Monica Blvd. Suite 61378, Los Angeles, CA 90069-4109.

All other feedback, comments, requests for technical support and other communications relating to the Website or Portal should be directed to: security@communityresport.com.